

No. A-_____

IN THE SUPREME COURT OF THE UNITED STATES

DONALD J. TRUMP, PRESIDENT OF THE UNITED STATES, ET AL.,
APPLICANTS

v.

STATE OF HAWAII, ET AL.

APPLICATION FOR STAY PENDING APPEAL
TO THE UNITED STATES COURT OF APPEALS
FOR THE NINTH CIRCUIT AND PENDING
FURTHER PROCEEDINGS IN THIS COURT

NOEL J. FRANCISCO
Solicitor General
Counsel of Record

Department of Justice
Washington, D.C. 20530-0001
SupremeCtBriefs@usdoj.gov
(202) 514-2217

PARTIES TO THE PROCEEDING

The applicants (defendants-appellants below) are Donald J. Trump, in his official capacity as President of the United States; the Department of Homeland Security; Elaine C. Duke, in her official capacity as Acting Secretary of Homeland Security; the Department of State; Rex W. Tillerson, in his official capacity as Secretary of State; and the United States of America.

The respondents (plaintiffs-appellees below) are the State of Hawaii, Dr. Ismail Elshikh, John Does 1 and 2, and the Muslim Association of Hawaii, Inc.

IN THE SUPREME COURT OF THE UNITED STATES

No. A-_____

DONALD J. TRUMP, PRESIDENT OF THE UNITED STATES, ET AL.,
APPLICANTS

v.

STATE OF HAWAII, ET AL.

APPLICATION FOR STAY PENDING APPEAL
TO THE UNITED STATES COURT OF APPEALS
FOR THE NINTH CIRCUIT AND PENDING
FURTHER PROCEEDINGS IN THIS COURT

Pursuant to this Court's Rule 23 and the All Writs Act, 28 U.S.C. 1651, the Solicitor General, on behalf of applicants President Donald J. Trump, et al., respectfully applies for a stay of the preliminary injunction issued by the United States District Court for the District of Hawaii, pending the consideration and disposition of the government's appeal from that injunction to the United States Court of Appeals for the Ninth Circuit and, if the court of appeals affirms the injunction, pending the filing and disposition of a petition for a writ of certiorari and any further proceedings in this Court.

The Constitution and Acts of Congress confer on the President broad authority to prevent aliens abroad from entering this country

when he deems it in the Nation's interest. In order to protect national security, the President exercised that authority by issuing Proclamation No. 9645, 82 Fed. Reg. 45,161 (Sept. 27, 2017) (Proclamation). The Proclamation is the culmination of an extensive, worldwide review process conducted by multiple government agencies to determine what information is necessary from each foreign country in order to admit nationals of that country to the United States while ensuring that travelers do not pose a security or public-safety threat. Whereas the President's prior immigration orders were temporary measures to facilitate that review, the Proclamation directly responds to the completed review and its specific findings. After the review, the Acting Secretary of Homeland Security found that some countries continue to be unwilling or unable to share needed information with the United States, to reliably verify the identity of their nationals, or to control terrorists within their borders. Accordingly, the Acting Secretary recommended that the President impose restrictions on the entry of certain nationals of eight countries -- Chad, Iran, Libya, North Korea, Syria, Venezuela, Yemen, and Somalia -- in order to protect the security of the United States.

The President reviewed the Acting Secretary's recommendation; consulted with the Acting Secretary, the Secretaries of State and Defense, and the Attorney General; considered foreign-policy, national-security, and counterterrorism goals; and assessed each

country's distinct circumstances. The President then issued the Proclamation, which restricts the entry of certain nationals of the eight countries identified in the Acting Secretary's recommendation. The Proclamation describes the President's judgment that these restrictions are necessary both to prevent the entry of foreign nationals about whom the United States lacks sufficient information, and to elicit more information and more secure practices from foreign governments that are deficient. The entry suspensions are subject to certain exceptions, case-by-case waivers, and periodic review.

The Proclamation differs from the President's prior executive orders both in process and substance. It is the product of a review process undertaken by multiple Cabinet officers and government officials, none of whose motives has ever been questioned. And it is based on express findings of inadequacies in the information-sharing practices, identity-management protocols, and risk factors for certain countries, as well as a Presidential determination that tailored entry restrictions will both protect the Nation and encourage those countries to improve. The Proclamation covers different countries than the prior orders: it removes one majority-Muslim country; adds other countries, some of which are not majority-Muslim; and excludes various nonimmigrant travelers from all but one of the majority-Muslim countries. These differences confirm that the Proclamation is

based on national-security and foreign-affairs objectives, not religious animus.

Notwithstanding the significant differences between the Proclamation and the President's prior orders, the district court again issued a preliminary injunction largely barring enforcement worldwide of the Proclamation's entry suspensions, concluding that the Proclamation likely violates the Immigration and Nationality Act. The court relied heavily on a Ninth Circuit opinion that has since been vacated by this Court, see Trump v. Hawaii, No. 16-1540, 2017 WL 4782860 (Oct. 24, 2017). The government immediately appealed to the Ninth Circuit and requested a stay pending appeal and further proceedings in this Court. On November 13, 2017, the court of appeals stayed part but not all of the injunction. It stayed the injunction "except as to 'foreign nationals who have a credible claim of a bona fide relationship with a person or entity in the United States.'" Addendum (Add.) 1.

All of the relevant factors strongly support a full stay of the Hawaii court's injunction. First, if the Ninth Circuit upholds the injunction, there is a reasonable probability that this Court will grant a writ of certiorari, as it did the last time courts barred the President from enforcing entry restrictions on certain foreign nationals in the interest of national security. See Trump v. IRAP, 137 S. Ct. 2080, 2086 (2017). The injunction nullifies a formal national-security directive of the President, and the

district court's interpretations of the INA would constrain the ability of this and all future Presidents to take measures to protect the Nation and achieve critical foreign-relations objectives. Second, there is more than a fair prospect that this Court will reverse the injunction because respondents' claims are neither justiciable nor meritorious. Whereas the Ninth Circuit faulted the President's prior Executive Order for lacking a finding that existing vetting procedures for foreign nationals were inadequate, the Proclamation was the product of a multi-Department worldwide review process that identified countries that do not currently provide sufficient information to assess the risk that their nationals pose to the United States. Third, preventing the President from effectuating his national-security and foreign-relations judgment will cause ongoing irreparable harm to the government and the public, especially by requiring the Executive to disregard the identified inadequacies and by undermining the Proclamation's goal of inducing cooperation by other nations. At a minimum, the injunction should be stayed to the extent it goes beyond identified aliens whose exclusion allegedly imposes concrete, irreparable injury on these particular respondents. See United States Dep't of Def. v. Meinhold, 510 U.S. 939 (1993).¹

¹ Although the district court correctly did not extend its injunction to the President himself, Add. 3-4, the President is injured by the injunction because it prevents the Executive Branch from carrying out his Proclamation.

STATEMENT

1. The Immigration and Nationality Act (INA), 8 U.S.C. 1101 et seq., governs admission of aliens into the United States. Admission generally requires a valid visa or other valid travel document. See 8 U.S.C. 1181, 1182(a)(7)(A)(i) and (B)(i)(II), 1203. The process of applying for a visa typically includes an in-person interview and results in a decision by a State Department consular officer. 8 U.S.C. 1201(a)(1), 1202(h), 1204; 22 C.F.R. 42.62. Although a visa often is necessary for admission, it does not guarantee admission; the alien still must be found admissible upon arriving at a port of entry. 8 U.S.C. 1201(h), 1225(a).

Congress also has created a Visa Waiver Program, enabling nationals of certain countries to seek temporary admission without a visa. 8 U.S.C. 1182(a)(7)(B)(iv); 8 U.S.C. 1187 (2012 & Supp. IV 2016). In 2015, Congress excluded from travel under that Program aliens who are dual nationals of or recent visitors to Iraq or Syria -- where "[t]he Islamic State of Iraq and the Levant * * * maintain[s] a formidable force" -- and nationals of and recent visitors to countries designated by the Secretary of State as state sponsors of terrorism (Iran, Sudan, and Syria).² Congress also authorized the Department of Homeland Security (DHS) to designate additional countries of concern, considering whether

² U.S. Dep't of State, Country Reports on Terrorism 2015, at 6, 299-302 (June 2016), <https://goo.gl/40GmOS>; see 8 U.S.C. 1187(a)(12)(A)(i) and (ii) (Supp. IV 2016).

a country is a "safe haven for terrorists," "whether a foreign terrorist organization has a significant presence" in it, and "whether the presence of an alien in the country * * * increases the likelihood that the alien is a credible threat to" U.S. national security. 8 U.S.C. 1187(a)(12)(D)(i) and (ii) (Supp. IV 2016). Applying those criteria, in 2016, DHS excluded from the Program recent visitors to Libya, Somalia, and Yemen.³

Congress also has accorded the Executive broad discretion to suspend or restrict the entry of aliens, including aliens who might otherwise be eligible to receive a visa and be admitted to the United States. Section 1182(f) of Title 8 provides:

Whenever the President finds that the entry of any aliens or of any class of aliens into the United States would be detrimental to the interests of the United States, he may * * * for such period as he shall deem necessary, suspend the entry of all aliens or any class of aliens as immigrants or nonimmigrants, or impose on the entry of aliens any restrictions he may deem to be appropriate.

Section 1185(a)(1) further grants the President broad authority to adopt "reasonable rules, regulations, and orders" governing entry of aliens, "subject to such limitations and exceptions as [he] may prescribe."

2. In March 2017, the President issued Executive Order No. 13,780, 82 Fed. Reg. 13,209 (Mar. 9, 2017) (EO-2), which directed the Secretary of Homeland Security to determine whether foreign governments provide adequate information to vet foreign

³ DHS, DHS Announces Further Travel Restrictions for the Visa Waiver Program (Feb. 18, 2016), <https://goo.gl/OXTqb5>.

nationals applying for United States visas before they are permitted to enter. See Trump v. IRAP, 137 S. Ct. 2080, 2083 (2017) (describing EO-2). In order to ensure that dangerous individuals did not enter while the government was working to establish adequate standards, and to reduce investigative burdens on the agencies during the review, EO-2 temporarily suspended the entry of foreign nationals from six countries previously identified by Congress or the Executive as presenting terrorism-related concerns. See id. at 2083-2084.

EO-2 was challenged in multiple courts, and partially enjoined by district courts in Maryland and Hawaii. IRAP v. Trump, 241 F. Supp. 3d 539 (D. Md. 2017); Hawaii v. Trump, 245 F. Supp. 3d 1227 (D. Haw. 2017). The Fourth and Ninth Circuits upheld those injunctions in substantial part. IRAP v. Trump, 857 F.3d 554 (4th Cir. 2017) (en banc); Hawaii v. Trump, 859 F.3d 741 (9th Cir. 2017) (per curiam). This Court granted certiorari and partially stayed the injunctions pending review. IRAP, 137 S. Ct. at 2086, 2088-2089. The Court allowed EO-2's entry suspension to take effect except as to "foreign nationals who have a credible claim of a bona fide relationship with a person or entity in the United States." Id. at 2088. And the Court stated that "the executive review directed by" EO-2 "may proceed promptly, if it is not already underway." Ibid. After EO-2's temporary entry suspension expired, this Court vacated the lower courts' rulings as moot.

Trump v. IRAP, No. 16-1436, 2017 WL 4518553 (Oct. 10, 2017); Trump v. Hawaii, No. 16-1540, 2017 WL 4782860 (Oct. 24, 2017).

3. On September 24, 2017, the President issued Proclamation No. 9645, 82 Fed. Reg. 45,161 (Sept. 27, 2017). The Proclamation is the product of EO-2's comprehensive, worldwide review of whether foreign governments provide sufficient information and have other practices to allow the United States to properly screen their nationals before entry.

a. DHS, in consultation with the Department of State and the Office of the Director of National Intelligence, undertook "to identify whether, and if so what, additional information will be needed from each foreign country to adjudicate an application by a national of that country for a visa, admission, or other benefit under the INA * * * in order to determine that the individual is not a security or public-safety threat." Procl. § 1(c). The Acting Secretary of Homeland Security, in consultation with the Secretary of State and Director of National Intelligence, developed a "baseline" for the information required from foreign governments. Ibid. That baseline incorporated three components:

(i) identity-management information, i.e., "information needed to determine whether individuals seeking benefits under the immigration laws are who they claim to be," which turns on criteria such as "whether the country issues electronic passports embedded with data to enable confirmation of identity, reports lost and stolen passports to appropriate entities, and makes available upon request identity-related information not included in its passports";

(ii) national-security and public-safety information about whether a person seeking entry poses a risk, which turns on criteria such as "whether the country makes available * * * known or suspected terrorist and criminal-history information upon request," "whether the country impedes the United States Government's receipt of information about passengers and crew traveling to the United States," and "whether the country provides passport and national-identity document exemplars"; and

(iii) a national-security and public-safety risk assessment of the country, which turns on criteria such as "whether the country is a known or potential terrorist safe haven, whether it is a participant in the Visa Waiver Program * * * that meets all of [the program's] requirements, and whether it regularly fails to receive its nationals subject to final orders of removal from the United States."

Ibid.

DHS, in coordination with the Department of State, collected data on, and evaluated, nearly 200 countries. Procl. § 1(d). The agencies measured each country's performance in issuing reliable travel documents and implementing adequate identity-management and information-sharing protocols and procedures. Ibid. They also evaluated terrorism-related and public-safety risks associated with each country. Ibid. The Acting Secretary of Homeland Security identified 16 countries as having "inadequate" information-sharing practices and risk factors, and another 31 countries as "at risk" of becoming "inadequate." Id. § 1(e). The Department of State then conducted a 50-day engagement period to encourage all foreign governments to improve their performance, which yielded significant improvements from many countries. Id. § 1(f). Multiple countries provided travel-document exemplars to

combat fraud, and/or agreed to share information on known or suspected terrorists. Ibid.

b. After the review concluded, on September 15, 2017, the Acting Secretary of Homeland Security identified seven countries that, even after diplomatic engagement, continue to have inadequate identity-management protocols or information-sharing practices, or whose nationals present other heightened risk factors: Chad, Iran, Libya, North Korea, Syria, Venezuela, and Yemen. Procl. § 1(h). The Acting Secretary therefore recommended that the President impose entry restrictions on certain nationals from these countries. The Acting Secretary also recommended entry restrictions for nationals of Somalia, which, although it generally satisfies baseline requirements for information sharing, has identity-management deficiencies and a significant terrorist presence within its territory that the Somali government is unable to control. Id. § 1(i).⁴

c. The President evaluated the Acting Secretary's recommendations in consultation with multiple Cabinet members and other government officials. Procl. § 1(h)(i) and (ii). The President considered a number of factors, including each country's "capacity, ability, and willingness to cooperate with our

⁴ The Acting Secretary also assessed that Iraq does not meet the information-sharing baseline, but recommended that the President not restrict entry of Iraqi nationals in light of, among other things, the close cooperative relationship between the United States and the government of Iraq. Procl. § 1(g).

identity-management and information-sharing policies and each country's risk factors," as well as "foreign policy, national security, and counterterrorism goals." Id. § 1(h)(i).

Then, "in accordance with the recommendations," the President imposed entry restrictions on certain nationals from the eight countries that are tailored to "each country's distinct circumstances." Procl. § 1(h)(i)-(iii). The President determined that these restrictions are "necessary to prevent the entry of those foreign nationals about whom the United States Government lacks sufficient information to assess the risks they pose to the United States," and "to elicit improved identity-management and information-sharing protocols and practices from foreign governments." Procl. § 1(h)(i).

For countries that refuse to cooperate regularly with the United States (Iran, North Korea, and Syria), Section 2 of the Proclamation suspends entry of all nationals, except for Iranians seeking nonimmigrant student (F and M) and exchange-visitor (J) visas. Procl. § 2(b)(ii), (d)(ii) and (e)(ii). For countries that are valuable counter-terrorism partners but have information-sharing deficiencies (Chad, Libya, and Yemen), the Proclamation suspends entry only of nationals seeking immigrant visas and nonimmigrant business, tourist, and business/tourist visas. Id. § 2(a)(ii), (c)(ii) and (g)(ii). For Somalia, the Proclamation suspends entry of nationals seeking immigrant visas and requires

additional scrutiny of nationals seeking nonimmigrant visas. Id. § 2(h)(ii). And for Venezuela, which refuses to cooperate in information sharing but for which alternative means are available to identify its nationals, the Proclamation suspends entry of government officials “involved in screening and vetting procedures” and “their immediate family members” on nonimmigrant business or tourist visas. Id. § 2(f)(ii).

The Proclamation provides for case-by-case waivers where a foreign national demonstrates that denying entry would cause undue hardship, entry would not pose a threat to the national security or public safety, and entry would be in the national interest. Procl. § 3(c)(i)(A)-(C). The Proclamation requires periodic reporting to the President about whether entry restrictions should be continued, modified, terminated, or supplemented. Id. § 4.

4. a. Respondents filed suit in the District of Hawaii challenging the Proclamation under the INA, various other statutes, and the Establishment and Equal Protection Clauses. The three individual plaintiff-respondents are U.S. citizens or lawful permanent residents who have relatives from Syria, Yemen, and Iran seeking immigrant or nonimmigrant visas. C.A. E.R. 137. The Muslim Association of Hawaii is a non-profit organization that operates mosques in Hawaii. Ibid. The State of Hawaii is also a plaintiff. Ibid.

b. After highly expedited briefing and without argument, the district court granted a worldwide temporary restraining order barring enforcement of Section 2 of the Proclamation, except as to nationals of Venezuela and North Korea (restrictions that respondents did not seek to enjoin). Add. 14 n.10. The court relied heavily on the Ninth Circuit's opinion in Hawaii, 859 F.3d 741, which at the time had not yet been vacated by this Court.

The district court held that respondents have standing, that they are within the zone of interests protected by the INA, that their claims are ripe, and that their claims are justiciable. Add. 26-28. On the merits, the district court held that the Proclamation likely exceeds the President's authority under 8 U.S.C. 1182(f) and 1185(a)(1) because, although the President found that entry of the targeted classes of aliens would be detrimental to the interests of the United States, the Proclamation's entry restrictions are "a poor fit" for the problems identified. Add. 29-37. The court also was of the view that the Proclamation's entry restrictions likely violate 8 U.S.C. 1152(a)(1)(A), which bars "discriminat[ing]" or granting a "preference or priority" in the "issuance of an immigrant visa because of" an alien's "nationality." Add. 37-39. Having concluded that the Proclamation violates the INA, the court "decline[d] to reach" respondents' alternative constitutional claims. Add. 29. The government then consented to conversion of the TRO into a preliminary injunction

if the court would have reached the same conclusion absent the Ninth Circuit's decision in Hawaii, and the court so converted. Add. 28-29.

5. The government appealed the preliminary injunction, requested expedited briefing, and moved for a stay pending appeal as well as a petition for a writ of certiorari and proceedings in this Court. The Ninth Circuit stayed the injunction "except as to 'foreign nationals who have a credible claim of a bona fide relationship with a person or entity in the United States.'" Add. 1 (quoting IRAP, 137 S. Ct. at 2088).

6. Meanwhile, litigation over the Proclamation has proceeded in other courts. As relevant here, the District Court for the District of Maryland globally enjoined implementation of the Proclamation's suspension of entry of nationals from the designated countries (other than Venezuela and North Korea), except for persons who lack "a credible claim of a bona fide relationship with a person or entity in the United States." IRAP v. Trump, 2017 WL 4674313, at *39 (D. Md. Oct. 17, 2017) (quoting IRAP, 137 S. Ct. at 2088). The Maryland court rejected an interpretation of 8 U.S.C. 1182(f) virtually identical to the one the Hawaii court accepted, id. at *22-*23, but held (in a reversal of its prior position) that the Proclamation likely violates 8 U.S.C. 1152(a)(1)(A), id. at *19-*22. The court also stated that the Proclamation likely violates the Establishment Clause. Id. at

*27-*37. The government appealed, requested expedited briefing, and sought a stay pending appeal and further proceedings in this Court. The Fourth Circuit has not acted on the government's stay motion, and the government intends to file a stay application in that case to this Court.

ARGUMENT

Under this Court's Rule 23 and the All Writs Act, 28 U.S.C. 1651, a single Justice or the Court has authority to stay a district-court order pending appeal to a court of appeals.⁵ In considering the application, the Court or Circuit Justice considers whether four Justices are likely to vote to grant certiorari if the court of appeals ultimately rules against the applicant; whether five Justices would then likely conclude that the case was erroneously decided below; and whether, on balancing the equities, the injury asserted by the applicant outweighs the harm to the other parties or the public. See San Diegans for the Mt. Soledad Nat'l War Mem'l v. Paulson, 548 U.S. 1301, 1302 (2006) (Kennedy, J., in chambers); Hilton v. Braunskill, 481 U.S. 770, 776 (1987) (traditional stay factors). Here, all of those factors counsel strongly in favor of a stay. At a minimum, the injunction -- which bars enforcement of the Proclamation's entry suspensions worldwide as to every affected country other than North Korea and

⁵ See, e.g., Trump v. Hawaii, No. 16-1540, 2017 WL 3045234 (July 19, 2017); West Virginia v. EPA, 136 S. Ct. 1000 (2016); Stephen M. Shapiro et al., Supreme Court Practice § 17.6, at 881-884 (10th ed. 2013).

Venezuela -- is vastly overbroad and should be stayed to the extent it goes beyond remedying the alleged injury to respondents from the exclusion of identified aliens.

I. THIS COURT IS LIKELY TO GRANT CERTIORARI IF THE COURT OF APPEALS AFFIRMS THE INJUNCTION

If the Ninth Circuit affirms the injunction against the Proclamation in whole or in part, this Court is likely to grant certiorari, as it did when the Fourth and Ninth Circuits upheld preliminary injunctions against EO-2. As before, this case presents exceptionally important questions concerning the President's authority to exclude aliens abroad based on his national-security and foreign-policy judgment. The Proclamation was expressly authorized by Acts of Congress, 8 U.S.C. 1182(f) and 1185(a)(1), that "implement[] an inherent executive power" regarding the "admissibility of aliens." United States ex rel. Knauff v. Shaughnessy, 338 U.S. 537, 542 (1950). The district court's injunction nullifies the President's exercise of that authority based on a fundamental misreading of the INA.

This Court has granted certiorari to address interference with Executive Branch determinations that are of "importance * * * to national security concerns," Department of Navy v. Egan, 484 U.S. 518, 520 (1988); see Winter v. Natural Res. Def. Council, Inc., 555 U.S. 7, 12 (2008), and to address "important questions" of interference with "federal power" over "the law of immigration and alien status." Arizona v. United States, 567 U.S. 387, 394

(2012); see United States v. Texas, 136 S. Ct. 2271 (2016) (per curiam). Both considerations are present here.

Indeed, if the Ninth Circuit were to affirm the injunction here, the need for this Court's review would be even greater than before. Whereas EO-2 was premised on the President's conclusion that uncertainty about the adequacy of other governments' information-sharing warranted a review of their protocols and cooperation, the Proclamation is based on the President's affirmative determinations -- made following a comprehensive, multi-Department review -- that particular countries' information sharing is in fact deficient. The district court's decision improperly second-guesses those findings and disables the Executive from fully responding to existing and identified national-security risks. And by invalidating entry restrictions designed in part to induce foreign governments' cooperation, the court injected itself into sensitive matters of foreign affairs, risking "what [this] Court has called in another context 'embarrassment of our government abroad' through 'multifarious pronouncements by various departments on one question.'" Sanchez-Espinoza v. Reagan, 770 F.2d 202, 209 (D.C. Cir. 1985) (Scalia, J.) (quoting Baker v. Carr, 369 U.S. 186, 217, 226 (1962)).

II. THERE IS AT LEAST A FAIR PROSPECT THAT THIS COURT WILL SET ASIDE THE INJUNCTION IN WHOLE OR IN PART

If the Ninth Circuit affirms the injunction in this case, there is at least a "fair prospect" that this Court will vacate

the injunction in whole or in part, Lucas v. Townsend, 486 U.S. 1301, 1304 (1988) (Kennedy, J., in chambers), because respondents' claims are not justiciable and because they fail on the merits.

A. Respondents' Statutory Claims Are Not Justiciable

1. "[T]he power to expel or exclude aliens [is] a fundamental sovereign attribute exercised by the Government's political departments largely immune from judicial control." Fiallo v. Bell, 430 U.S. 787, 792 (1977). This Court has accordingly made clear that "it is not within the province of any court, unless expressly authorized by law, to review the determination of the political branch of the Government to exclude a given alien." Knauff, 338 U.S. at 543. The Executive's decision to exclude or deny a visa to an alien abroad therefore "is not subject to judicial review * * * unless Congress says otherwise." Saavedra Bruno v. Albright, 197 F.3d 1153, 1159 (D.C. Cir. 1999).

Congress has not authorized any judicial review of visa denials -- even when requested by the alien affected, see 6 U.S.C. 236(f) -- much less by third parties like respondents. In fact, Congress has expressly forbidden "judicial review" of the revocation of a visa even for aliens already in the United States, subject to a narrow exception for an alien in removal proceedings. 8 U.S.C. 1201(i). On the one occasion when this Court held that aliens physically present in the United States (but not aliens abroad) could seek review of their exclusion orders under the

Administrative Procedure Act (APA), 5 U.S.C. 701 et seq., see Brownell v. Tom We Shung, 352 U.S. 180, 184-186 & nn.3 and 5 (1956), Congress intervened to expressly preclude such suits and permit review only through habeas corpus, which is unavailable to aliens seeking entry from abroad. Act of Sept. 26, 1961, Pub. L. No. 87-301, § 5(a), 75 Stat. 651-653; Saavedra Bruno, 197 F.3d at 1157-1162 (recounting history); 8 U.S.C. 1252(a) (current INA provision for judicial review only of final orders of removal). Because Congress has not authorized review of respondents' statutory claims challenging the Proclamation's entry restrictions, those claims are not judicially reviewable.

The district court, relying on the court of appeals' now-vacated decision addressing EO-2, held that respondents' statutory claims are reviewable. Add. 27-28. The Ninth Circuit had stated that the rule of nonreviewability of the exclusion of aliens abroad applies only to "an individual consular officer's decision to grant or to deny a visa," but not to the exercise of the President's authority under 8 U.S.C. 1182(f) and 1185(a)(1). Hawaii v. Trump, 859 F.3d 741, 768 (2017) (per curiam). That distinction is fundamentally flawed. The nonreviewability rule is not based on the nature of consular officers' individualized visa decisions, but rather on the separation-of-powers principle that the exclusion of aliens abroad is a foreign-policy judgment committed to the political branches. Saavedra Bruno, 197 F.3d at

1159, 1163. Thus, although the nonreviewability rule is most often applied to individual visa-adjudication decisions, it would invert the constitutional structure to deny review of decisions by consular officers -- subordinate Executive-Branch officials -- while permitting review of a statutory challenge to the President's decision to suspend entry of classes of aliens.⁶

2. Respondents argued below that review is available on two other grounds, but neither has merit. Respondents contended that, despite the general rule of nonreviewability, the APA authorizes review of their statutory claims under 5 U.S.C. 702. Resp. C.A. Stay Opp. 8-10. But far from displacing the general rule, the APA embraces it in multiple ways. The APA does not apply at all where Congress has otherwise "preclude[d] judicial review," 5 U.S.C. 701(a)(1), and it is "unmistakable" from history that "the immigration laws 'preclude judicial review' of the consular visa decisions." Saavedra Bruno, 197 F.3d at 1160 (citation omitted). Moreover, the APA's cause of action expressly leaves intact other

⁶ The district court also relied on the Ninth Circuit's prior decision addressing the President's first executive order on these issues, Add. 27-28, but that decision concerned review of constitutional claims, not statutory claims. Washington v. Trump, 847 F.3d 1151, 1161-1163 (2017). The district court's injunction here does not rest on constitutional claims, which are reviewable only in limited circumstances. See Kleindienst v. Mandel, 408 U.S. 753 (1972); Gov't Br. at 26-27, Trump v. IRAP, No. 16-1436 (Aug. 10 2017).

“‘limitations on judicial review,’” which include the nonreviewability rule. Ibid. (quoting 5 U.S.C. 702(1)).⁷

Respondents also argued that review of the Executive’s decision to exclude aliens is available in equity. Resps. C.A. Stay Opp. 8-9. But the APA governs suits in equity to challenge the actions of federal officials, 5 U.S.C. 703, and in any event the “judge-made remedy” of equitable suits to review officials’ actions does not permit plaintiffs to sidestep “express and implied statutory limitations” on review of nonconstitutional claims, because “‘[c]ourts of equity can no more disregard’” those limitations than “‘courts of law.’” Armstrong v. Exceptional Child Ctr., Inc., 135 S. Ct. 1378, 1384-1385 (2015).

3. Even if the general rule of nonreviewability did not foreclose respondents’ claims, review would remain unavailable for several other reasons. First, the APA permits review only of “final agency action.” 5 U.S.C. 704. The President’s Proclamation is not “agency action” at all, see Franklin v. Massachusetts, 505 U.S. 788, 800-801 (1992), and in any event there has been no “final” agency action with respect to the aliens whose entry

⁷ The district court and the Ninth Circuit cited the D.C. Circuit’s earlier decision in Abourezk v. Reagan, 785 F.2d 1043 (D.C. Cir. 1986), aff’d by equally divided Court, 484 U.S. 1 (1987), which held that the APA did allow review. But as the D.C. Circuit subsequently explained, Abourezk “rested in large measure” on an INA provision that was later amended to “make[] clear that district courts do not have general jurisdiction over claims arising under the immigration laws.” Saavedra Bruno, 197 F.3d at 1164. Abourezk also did not address 5 U.S.C. 702(1).

respondents seek. Unless and until those aliens apply for a visa, are found by a consular officer to be otherwise eligible to receive a visa, and are then denied a visa and a waiver under the Proclamation, there is no final agency action for a court to review.

Second, for much the same reason, respondents' challenges are not ripe because they "rest[] upon 'contingent future events'" -- including that the aliens will not obtain visas -- "'that may not occur as anticipated, or indeed may not occur at all.'" Texas v. United States, 523 U.S. 296, 300 (1998).

Third, none of the statutes invoked by respondents confers on a third party in the United States a judicially cognizable interest in the denial of a visa to an alien abroad that could be the basis for an APA suit. Sections 1182(f) and 1185(a)(1) confer discretion on the President, not rights on private parties. And Section 1152(a)(1)(A) is addressed to aliens seeking visas, not their relatives or relationship partners in the United States.⁸

Finally, the APA does not permit review to the extent "agency action is committed to agency discretion by law." 5 U.S.C. 701(a)(2). The statutes that authorize the Proclamation here,

⁸ The statutory interest of a U.S. person who petitions for an alien's immigrant status "terminate[s]" "[w]hen [his] petition [i]s granted." Saavedra Bruno, 197 F.3d at 1164. That petitioner has no right to seek the next step, a visa, on behalf of the alien abroad. And of course, U.S. persons and entities that the INA does not permit to petition for an alien's immigration status have no enforceable statutory rights at all.

8 U.S.C. 1182(f) and 1185(a)(1), “exude[] deference” to the President and “foreclose the application of any meaningful judicial standard of review.” Webster v. Doe, 486 U.S. 592, 600 (1988). These multiple barriers to review of respondents’ INA claims counsel against allowing the injunction premised on those claims to disable the Proclamation during an expedited appeal.

B. Respondents’ Statutory Claims Lack Merit

Even if respondents’ challenges to the Proclamation are justiciable, they lack merit.

1. The Proclamation is consistent with 8 U.S.C. 1182(f) and 8 U.S.C. 1185(a)(1)

a. By its terms, Section 1182(f) grants the President exceedingly broad discretion, authorizing him to suspend “by proclamation” entry of “any” or “all” aliens “as immigrants or nonimmigrants” for such time as he “deem[s] necessary” or to restrict their entry as he “deem[s] to be appropriate,” “[w]hensoever” he “finds” that their entry would be “detrimental to the interests of the United States.” 8 U.S.C. 1182(f). Courts have recognized that this statute confers a “sweeping proclamation power” to suspend entry of aliens. Abourezk v. Reagan, 785 F.2d 1043, 1049 n.2 (D.C. Cir. 1986) (R.B. Ginsburg, J.), aff’d by an equally divided Court, 484 U.S. 1 (1987). The breadth of the authorization reflects the fact that, “[w]hen Congress prescribes a procedure concerning the admissibility of aliens, it is not dealing alone with a legislative power,” but also “is implementing

an inherent executive power.” Knauff, 338 U.S. at 542. Furthermore, 8 U.S.C. 1185(a)(1) grants an additional power to the President by making it “unlawful” for an alien to “enter the United States except under such reasonable rules, regulations, and orders, and subject to such limitations and exceptions as the President may prescribe.”

Consistent with these express statutory grants of authority, the President found that it is necessary and appropriate to restrict particular classes of aliens in order to advance the foreign-policy, national-security, and counterterrorism objectives of the United States. First, the restrictions “prevent the entry of those foreign nationals about whom the United States Government lacks sufficient information to assess the risks they pose to the United States.” Procl. § 1(h)(i); see id. § 1(a) and (b) (explaining that foreign governments’ information sharing is critical to the vetting process because governments “manage the identity and travel documents of their nationals”). Respondents have offered no basis to second-guess that national-security judgment. Second, the entry restrictions are “needed to elicit improved identity-management and information-sharing protocols and practices from foreign governments” whose nationals are subject to the restrictions. Id. § 1(h)(i). The diplomatic engagement period described in the Proclamation yielded significant improvement in foreign governments’ information sharing, id. § 1(e)-(g), and the

United States has a foreign-policy interest in continuing to encourage improvement: The Proclamation responds to specific inadequacies, identified in the agencies' review process, regarding countries for which the United States lacks sufficient information to assess the risk posed by their nationals. The government's case on the merits is thus even stronger than it was when this Court considered EO-2.

b. The district court read into the INA a requirement that, before suspending entry, the President must set forth detailed factual findings that "support the conclusion that entry of all nationals" who are suspended "would be harmful to the national interest." Add. 30 (quoting Hawaii, 859 F.3d at 770). That turns the statute's text on its head. The language authorizing the President to suspend or restrict entry -- "[w]henever [he] finds that the entry of any aliens * * * into the United States would be detrimental to the interests of the United States," 8 U.S.C. 1182(f) (emphases added) -- does not constrain his authority, but rather confirms its expansive sweep. And the statute expressly contemplates that the President may make these determinations on a broad scale, authorizing him to "suspend the entry of all aliens or any class of aliens." Ibid. Section 1185(a)(1), moreover, does not expressly require any findings by the President at all.

The President generally need not "disclose" his "reasons for deeming nationals of a particular country a special threat," Reno

v. American-Arab Anti-Discrimination Comm., 525 U.S. 471, 491 (1999), which may rest on classified or sensitive material. And when the President does disclose his reasons for finding that certain classes of nationals pose a risk to national security, courts are “ill equipped to determine their authenticity and utterly unable to assess their adequacy.” Ibid. The district court therefore seriously erred in holding that the INA subjects the President’s assessment of the national interest to searching judicial review.

Historical practice further refutes the district court’s misreading of the INA. For decades, Presidents have restricted entry pursuant to these statutes without detailed public justifications or findings; some have discussed the President’s rationale in one or two sentences that broadly declare the Nation’s interests.⁹ Indeed, some orders have suspended or restricted entry “not because of a particular concern that entry of the individuals themselves would be detrimental, but rather, as retaliatory diplomatic measures.” Hawaii, 859 F.3d at 772 n.12 (emphases added). President Reagan, for example, suspended entry of “all Cuban nationals” (with certain exceptions) based on the Cuban government’s decision to suspend execution of an immigration

⁹ See, e.g., Proclamation No. 8693, 76 Fed. Reg. 44,751 (July 27, 2011); Proclamation No. 8342, 74 Fed. Reg. 4093 (Jan. 22, 2009); Proclamation No. 6958, 61 Fed. Reg. 60,007 (Nov. 26, 1996); Exec. Order No. 12,807, 57 Fed. Reg. 23,133 (June 1, 1992); Proclamation No. 5887, 53 Fed. Reg. 43,185 (Oct. 26, 1988); Proclamation No. 5829, 53 Fed. Reg. 22,289 (June 14, 1988).

agreement with the United States. See Proclamation No. 5517, 51 Fed. Reg. 30,470 (Aug. 26, 1986). President Carter invoked Section 1185(a)(1) in 1979 in response to the Iranian Hostage Crisis to restrict entry of Iranian nationals, and in doing so he made no express findings and delegated the authority to prescribe the restrictions to lower Executive Branch officials. See Exec. Order No. 12,172, § 1-101, 44 Fed. Reg. 67,947 (Nov. 28, 1979). The Proclamation here -- which responds to certain foreign governments' ongoing unwillingness or inability to improve their information-sharing, identity-management, and other security practices -- is materially indistinguishable in this respect from the orders of President Carter and President Reagan.

c. The Proclamation expressly finds that the suspensions imposed are in the national interest. That should be the end of the matter. Regardless, the Proclamation explains in great detail the purposes that the restrictions serve and the facts on which it is based. It therefore easily satisfies any requirement that the INA conceivably imposes.

The district court dismissed the Proclamation's objectives as "aspirational justifications" that the court found "no[t] * * * satisfying" because they were not tied to "verifiable evidence." Add. 35. But the evidence was produced in the weeks-long comprehensive review conducted by multiple government agencies. The agencies set standards, reviewed nearly 200 countries, and

then obtained improvement in several countries through diplomatic engagement. Cabinet-level officials made recommendations to the President about particular countries based on their consideration of the national-security concerns associated with each individual country. These conclusions are entitled to substantial deference. The fact that some of the evidence reviewed by the President is non-public and privileged, see Add. 33 n.16, is not surprising in this context and does not remotely disable the President from exercising his authority under Section 1182(f). Especially "when it comes to collecting evidence and drawing factual inferences" in the national-security context, "'the lack of competence on the part of the courts is marked,' * * * and respect for the Government's conclusions is appropriate." Holder v. Humanitarian Law Project, 561 U.S. 1, 34 (2010) (HLP); cf. Egan, 484 U.S. at 527-529 (the President's "[p]redictive judgment[s]" on national-security questions warrant deference).

d. Rather than afford deference to the Executive Branch's national-security and foreign-relations judgments, the district court imposed a standard akin to heightened scrutiny by criticizing the "fit" between the President's findings and the restrictions in the Proclamation. Add. 31-35. That novel requirement is entirely unsupported by the discretion-granting text of 8 U.S.C. 1182(f) and 1185(a)(1). Even if some type of judicial review were appropriate, it would be sufficient that the Proclamation

articulates a rational connection between the entry restrictions imposed and the national interest, a standard the Proclamation readily satisfies. See IRAP v. Trump, 2017 WL 4674314, at *23 (D. Md. Oct. 17, 2017) (“[T]here is no requirement that a[n 8 U.S.C.] 1182(f) entry restriction meet more stringent standards found elsewhere in the law.”). The district court’s contrary approach would enmesh courts in the President’s conduct of foreign affairs, despite the well-established principle that such matters are “‘largely immune from judiciary inquiry or interference.’” Regan v. Wald, 468 U.S. 222, 242 (1984).

2. The Proclamation is consistent with 8 U.S.C. 1152(a)

The district court held that the Proclamation’s entry restrictions violate 8 U.S.C. 1152(a)(1)(A), which prohibits “discriminat[ing]” or granting a “preference or priority” in the “issuance of an immigrant visa because of,” inter alia, an alien’s “nationality.” That interpretation is incorrect, and even the court’s reading of Section 1152(a)(1)(A) could not support an injunction against the Proclamation’s restrictions on entry as opposed to immigrant-visa issuance.

a. The district court read Section 1152(a)(1)(A) to create a conflict with the President’s authority in Section 1182(f) to suspend the entry of “any class” of aliens. There is no conflict, because the two provisions operate in different spheres. Visas are issued by consular officers, but a visa may not be issued if

the applicant "is ineligible to receive a visa * * * under [S]ection 1182." 8 U.S.C. 1201(g). Section 1182 lists many grounds for ineligibility, including criminal history, terrorist affiliation, or a Presidential determination under Section 1182(f) that the alien may not enter the United States. Section 1152(a)(1)(A) provides that, within the universe of aliens who are not disqualified from receiving a visa by a Presidential entry suspension under Section 1182(f), under Section 1185(a)(1), or by any other INA provision, consular officers and other government officials are prohibited from discriminating on the basis of nationality in issuing immigrant visas. The 1965 amendment enacting the provision codified at 8 U.S.C. 1152(a)(1)(A) was designed to eliminate the country-based quota system for immigrants that was previously in effect, not to modify the eligibility criteria for admission or limit preexisting restraints on eligibility such as those in Sections 1182(f) or 1185(a)(1). See H.R. Rep. No. 745, 89th Cong., 1st Sess. 12-13 (1965); S. Rep. No. 748, 89th Cong., 1st Sess. 11, 13 (1965).

Here again, historical practice strongly supports that reading. As discussed, President Reagan suspended immigrant entry of "all Cuban nationals" (with exceptions). 51 Fed. Reg. at 30,470. And President Carter announced that the State Department would "invalidate all visas issued to Iranian citizens" and would not reissue visas or issue new visas "except for compelling and

proven humanitarian reasons or where the national interest of our own country requires.” The American Presidency Project, Jimmy Carter, Sanctions Against Iran Remarks Announcing U.S. Actions (Apr. 7, 1980), <https://goo.gl/3sYHLB>. Those actions would be unlawful under the decision below.

The district court’s interpretation of the INA raises grave constitutional questions because it would mean that, by statute, the President cannot suspend entry of aliens from a specified country even if he is aware of a particular threat from an unidentified national of that country, or the United States is on the brink of war with it. Respondents will not go that far; they concede that the entry restrictions on North Korean nationals are lawful in light of “the current state of relations between the United States and North Korea.” D. Ct. Doc. 368-1, at 10 n.4 (Oct. 10, 2017). The text of Section 1152(a)(1)(A), however, provides no standards that would enable the judiciary to assess respondents’ position that the situation in North Korea justifies entry restrictions but the terrorist threat in Somalia, for example, does not. That is because Section 1152(a)(1)(A) does not prohibit the President from imposing restrictions on aliens from particular countries in order to protect the Nation in the first place.

b. Even if Section 1152(a)(1)(A) did conflict with Sections 1182(f) and 1185(a)(1), the latter provisions would govern. The district court’s contrary view requires reading Section

1152(a)(1)(A) as partially "repeal[ing]" Sections 1182(f) and 1185(a)(1) by "implication," which is improper unless Congress's "intention" is "clear" and "manifest." National Ass'n of Home Builders v. Defenders of Wildlife, 551 U.S. 644, 662, 664 n.8 (2007) (citation omitted). Nothing in Section 1152(a)(1)(A) -- which does not mention the President or entry -- demonstrates a "clear and manifest" congressional intent to narrow the grants of authority to the President in Sections 1182(f) and 1185(a)(1). Id. at 662 (citation omitted). Sections 1182(f) and 1185(a)(1) also control as the more specific statutes because they confer distinct powers on the President to suspend entry when he determines the national interest requires in particular circumstances, see Sale v. Haitian Ctrs. Council, Inc., 509 U.S. 155, 171-173 (1993), as opposed to Section 1152(a)(1)(A)'s generic prohibition on discrimination in the day-to-day issuance of immigrant visas. Moreover, Section 1185(a)(1) was enacted in its current form in 1978, after Section 1152(a)(1), and thus it prevails as the most recent statute. See Foreign Relations Authorization Act, Fiscal Year 1979, Pub. L. No. 95-426, § 707(a), 92 Stat. 992-993.

c. The district court's reading of 8 U.S.C. 1152(a)(1)(A) suffers from the additional flaw that it cannot justify an injunction against the Proclamation, because the statute by its terms concerns only the "issuance of * * * immigrant visa[s]."

Even if Section 1152(a)(1)(A) prohibited the government from denying visas to immigrant applicants from particular countries, Section 1152(a)(1)(A) still would not require the government to take the additional step of allowing the entry of those aliens to the United States.¹⁰

III. THE BALANCE OF EQUITIES SUPPORTS A STAY

A. The injunction causes direct, irreparable injury to the interests of the government and the public, which merge here, see Nken v. Holder, 556 U.S. 418, 435 (2009). “[A]ny time a State is enjoined by a court from effectuating statutes enacted by representatives of its people, it suffers a form of irreparable injury.” Maryland v. King, 133 S. Ct. 1, 3 (2012) (Roberts, C.J., in chambers) (quoting New Motor Vehicle Bd. v. Orrin W. Fox Co., 434 U.S. 1345, 1351 (1977) (Rehnquist, J., in chambers)) (brackets in original). A fortiori this is true when a Proclamation of the President of the United States is enjoined.

The injunction here, moreover, is particularly harmful because it directly undermines the government’s ability to safeguard national security and conduct foreign relations -- “urgent objective[s] of the highest order.” Trump v. IRAP, 137 S. Ct. 2080, 2088 (2017) (quoting HLP, 561 U.S. at 28). As discussed, the Proclamation is based on a finding that certain foreign

¹⁰ The district court recognized that Section 1152(a)(1)(A) is limited to immigrant visas. Add. 39 n.20. As a result, that provision has no bearing on the large number of aliens covered by the Proclamation who seek nonimmigrant visas.

governments have inadequate information-sharing, identity-management protocols, or other risk factors that deny the United States sufficient information to assess the risks posed by their nationals; it thus suspends entry of certain nationals from those countries and applies diplomatic pressure in order to achieve greater cooperation. As this Court previously recognized, "[t]o prevent the Government from pursuing that objective * * * would appreciably injure its interests." Ibid.

The district court was wrong to discount these harms. Add. 41-42. Despite acknowledging that "[n]ational security and the protection of our borders [are] unquestionably also of significant public interest" and are "objectives of the highest order," the court stated that the government is "not likely harmed" here because the injunction requires the government "to adhere to immigration procedures that have been in place for years." Add. 41. But the Proclamation rests on a different policy judgment by the President, informed by a just-completed, multi-agency review, that the information provided by certain foreign governments is not adequate. It is the injunction in this case that departs from the status quo by breaking with historical practice to sharply curtail the President's authority.

For the same reason, the order entered by the court of appeals is not sufficient to prevent irreparable harm to the government. That standard was designed to track the limitations that this Court

imposed on the injunctions against EO-2. But as explained, EO-2 involved temporary procedures before the review was conducted and in the absence of a Presidential determination concerning the adequacy of foreign governments' information-sharing and identity-management practices. Now that the review has been completed and identified ongoing deficiencies in the information needed to assess nationals of particular countries, additional restrictions are needed. The Proclamation found that persons traveling on immigrant visas create particular challenges, Procl. § 1(h)(ii), yet the court of appeals' order would surely undermine the Proclamation's suspensions on immigrant-visa travel, because most immigrant-visa holders have a bona fide relationship with a person or entity in the United States.

The district court also stated that national-security concerns do not outweigh "the public's harms" when "the President has wielded his authority unlawfully." Add. 41. That reasoning conflates the equities and the merits. And it mistakenly disregards the public's interest in effectuating the Executive's determination to exclude certain aliens from countries that pose a heightened threat. Cf. Nken, 556 U.S. at 436 (That "there is a public interest in preventing aliens from being wrongfully removed * * * is no basis for the blithe assertion of an 'absence of any injury to the public interest' when a stay [of a removal order] is granted."). The public has a strong interest in suspension of

entry of aliens whose admission the President has determined, in consultation with his Cabinet and pursuant to his statutory authority, would be detrimental to the Nation's interests.

B. By contrast, respondents have failed to "demonstrate that irreparable injury is likely in the absence of an injunction." Winter, 555 U.S. at 22. The only concrete harm respondents allege is that the Proclamation will prevent certain identified aliens from entering the United States. But delay in entry alone, especially for the brief period while the government's appeal of the injunction is pending (on an expedited briefing schedule), does not amount to irreparable harm.

Moreover, respondents did not demonstrate that it is likely that the entry of any of those particular aliens would actually be delayed during the pendency of the appeal. Visa-processing times can vary widely, see Mendez-Garcia v. Lynch, 840 F.3d 655, 666 (9th Cir. 2016), and thus even apart from the Proclamation, respondents can only speculate that any of those particular aliens otherwise would be permitted to enter during the brief stay period. Aliens abroad who meet otherwise-applicable visa requirements may seek a waiver, and until such a waiver is denied, the alien has not received final agency action, and respondents' claimed harms are unripe and too remote and speculative to merit injunctive relief. At the very least, respondents' speculative allegations

do not outweigh the harm caused to the Nation as a whole in protecting the national security.

IV. THE GLOBAL INJUNCTION IS OVERBROAD AND SHOULD BE STAYED TO THE EXTENT IT GRANTS RELIEF BEYOND RESPONDENTS THEMSELVES

At a minimum, a stay is warranted because the injunction is vastly overbroad, as it was in United States Department of Defense v. *Meinhold*, 510 U.S. 939 (1993) (unanimously granting stay of injunction pending appeal insofar as it "grant[ed] relief to persons other than" the named plaintiff). Both Article III and equitable principles require that injunctive relief must be limited to redressing a plaintiff's own injuries stemming from a violation of his own rights. Article III requires that "[t]he remedy" sought "be limited to the inadequacy that produced the injury in fact that the plaintiff has established." Lewis v. Casey, 518 U.S. 343, 357 (1996). If a plaintiff himself faces no prospect of imminent, cognizable injury from challenged conduct, Article III prohibits awarding that plaintiff injunctive relief. See City of Los Angeles v. Lyons, 461 U.S. 95, 101-110 (1983). Principles of equity independently require that injunctions be no broader than "necessary to provide complete relief to the plaintiff[]." Madsen v. Women's Health Ctr., Inc., 512 U.S. 753, 765 (1994) (citation omitted). That must be especially so for a preliminary injunction in the context of national security.

The district court's injunction contravenes this settled rule. Even under the Ninth Circuit's partial stay, the injunction

sweeps far more broadly than redressing the purported harms of the specific aliens at issue in this case. It enjoins any application of the Proclamation's restrictions to any national of six of the covered countries who has a credible claim of a bona fide relationship with a person or entity in the United States. As noted above, that would cover most individuals seeking immigrant visas, and thus many of the foreign nationals covered by the Proclamation. The district court did not explain why that sweeping injunction is necessary to afford complete relief to respondents themselves. The court addressed the scope of relief in a single sentence, stating that "[n]ationwide relief is appropriate in light of the likelihood of success on [respondents'] INA claims," Add. 42 -- in other words, because respondents' statutory claim, if valid, would render unlawful application of the Proclamation to other aliens as well. That reasoning conflates the scope of the purported legal defect that respondents assert with the extent of their alleged harm.¹¹

Respondents argued below that global relief is warranted because of the importance of "uniform immigration law and policy." D. Ct. Doc. 368-1, at 36. But respect for the federal government's

¹¹ Moreover, as discussed above, p. 34, supra, and as the district court recognized, only the district court's holding based on Section 1182(f), if correct, could support global relief. The court's separate ruling based on Section 1152(a)(1)(A) cannot support the injunction in its entirety because that statute applies "only as to the issuance of immigrant visas"; it has no bearing on nonimmigrant visas. Add. 39 n.20 (emphasis omitted).

interest in uniform enforcement of the immigration laws requires leaving the Proclamation's global policy in place, with individualized exceptions for any respondents who have established irreparable injury from a violation of their own rights. The Proclamation's severability clause compels the same conclusion. Procl. § 8(a). Tailored relief would impose far less interference than enjoining the Proclamation categorically based on the injuries to a few individuals and organizations. As in Meinhold, this Court at a minimum should stay the injunction to the extent it affords relief beyond respondents themselves.

CONCLUSION

The injunction should be stayed in its entirety pending the disposition of the appeal in the Ninth Circuit and, if that court affirms the injunction, pending the filing and disposition of a petition for a writ of certiorari and any further proceedings in this Court. At a minimum, the injunction should be stayed as to all persons other than those aliens specifically identified by respondents whose exclusion would impose a cognizable, irreparable injury on respondents themselves.

Respectfully submitted.

NOEL J. FRANCISCO
Solicitor General

NOVEMBER 2017

ADDENDUM

Court of Appeals Order Granting in Part and Denying in Part a Stay Pending Appeal (9th Cir. Nov. 13, 2017)	1
District Court Order Granting Preliminary Injunction (D. Haw. Oct. 20, 2017)	3
District Court Order Granting Motion for Temporary Restraining Order (D. Haw. Oct. 17, 2017)	5
Exec. Order No. 13,780, 82 Fed. Reg. 13,209 (Mar. 9, 2017).....	45
Proclamation No. 9645, 82 Fed. Reg. 45,161 (Sept. 27, 2017)	56